

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kayla Medwinter	Team: Squad #7	CCRB Case #: 202202607	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 04/08/2022 1:00 AM	Location of Incident: 2875 Webster Avenue	Precinct: 52	18 Mo. SOL 10/8/2023	EO SOL 10/8/2023	
Date/Time CV Reported Mon, 04/11/2022 8:14 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/25/2022 2:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Finbar Casey	21180	967801	052 PCT
2. PO Orlando Bryan	19547	969552	052 PCT
3. PO Robert Glynn	08922	961791	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brandon Didiego	23817	969653	052 PCT
2. PO Neil Zullo	16449	970343	052 PCT
3. PO Joseph Manni	10182	956876	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Finbar Casey	Force: Police Officer Finbar Casey used physical force against § 87(2)(b)	
B. PO Orlando Bryan	Force: Police Officer Orlando Bryan used physical force against § 87(2)(b)	
C. PO Finbar Casey	Abuse: Police Officer Finbar Casey forcibly removed § 87(2)(b) to the hospital.	
D. PO Robert Glynn	Abuse: Police Officer Robert Glynn forcibly removed § 87(2)(b) to the hospital.	

Case Summary

On April 11, 2022, § 87(2)(b) made the following complaint with IAB.

On April 8, 2022, at approximately 1:00 a.m. in the vicinity of the Jolly Tinker Bar, located at 2875 Webster Avenue in the Bronx, PO Finbar Casey, PO Orlando Bryan, PO Brandon Didiego, PO Neil Zullo, PO Joseph Manni and PO Robert Glynn, all from the 52nd Precinct, responded to two 911 calls for a disorderly person. PO Casey and PO Bryan allegedly threw § 87(2)(b) around the bar in order to place § 87(2)(b) in handcuffs (**Allegation A** and **Allegation B: Force**, § 87(2)(g)). PO Casey and PO Glynn removed § 87(2)(b) to § 87(2)(b) against her will (**Allegation C** and **Allegation D: Abuse of Authority**, § 87(2)(g)).

Six Body-Worn Camera (BWC) videos, from all the officers present, were received. PO Bryan, PO Glynn and PO Casey's BWC are specifically noted in this report (Board Review 09, 10, and 12).

Findings and Recommendations

Allegation (A) Force: Police Officer Finbar Casey used physical force against § 87(2)(b)
Allegation (B) Force: Police Orlando Bryan used physical force against § 87(2)(b)
Allegation (C) Abuse of Authority: Officer Finbar Casey forcibly removed § 87(2)(b) to the hospital.
Allegation (D) Abuse of Authority: Officer Robert Glynn forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was interviewed over the phone on May 2, 2022 (Board Review 01).

PO Casey was interviewed at the CCRB on May 24, 2022 (Board Review 03).

PO Glynn was interviewed at the CCRB on June 14, 2022 (Board Review 07).

PO Zullo was interviewed at the CCRB on June 14, 2022 (Board Review 11).

§ 87(2)(b) stated she went to the Jolly Tinker Bar in the Bronx at approximately 8:00 p.m. on April 7, 2022 and stayed until 1:00 a.m. on April 8, 2022. While there, she had an argument with her friend in the bar. During the argument, she got a phone call from another friend who asked § 87(2)(b) where she was. Over the phone, § 87(2)(b) stated she was going to call her friend who was a parole officer, with a license to carry a firearm, to settle the argument. One of the bartenders at the location overheard § 87(2)(b) on the phone and took her phone out of her hand. § 87(2)(b) became upset and did not remember exactly what happened next. She remembered herself yelling and other people from the bar yelling. The bartender refused to give § 87(2)(b) her phone back. She became more upset, began to get loud, started grabbing chairs and stated she was not leaving until someone returned her phone. § 87(2)(b) was angry and was not sure if she flipped bar stools. She did not physically interact with anyone in the bar.

§ 87(2)(b) heard another patron of the bar call 911 and five officers arrived at the location. § 87(2)(b) told the officers that someone had her phone and stated she was not leaving until she had it back. PO Casey then called § 87(2)(b)'s phone. § 87(2)(b) could hear that her phone was still in the bartender's possession. At that time, the bartender was also holding § 87(2)(b)'s coat. PO Casey told § 87(2)(b) her phone was in the coat. § 87(2)(b) became more upset and said she wanted her phone in her hand before she left. PO Casey grabbed § 87(2)(b)'s left hand with his right hand. § 87(2)(b) felt a handcuff on her wrist and started to defend herself by swinging her hand and trying to pull away from PO Casey so that he would not place the handcuffs on her. PO Casey continued to try and place the handcuffs on § 87(2)(b) while she continued to pull away. At some point § 87(2)(b) pushed PO Casey away from her while the handcuff was still on her left wrist. All the other officers except for PO Bryan then helped PO Casey place the handcuffs on § 87(2)(b) while she was kicking and screaming. She felt the officers throw her around the bar while she tried to move away from them.

At some point she ended up against a wall with handcuffs on. PO Casey then pushed § 87(2)(b) onto the stretcher in an ambulance outside the bar. § 87(2)(b) was taken to § 87(2)(b) and was not arrested or issued a summons.

Two 911 calls were associated with the event generated for this incident (Board Review 02). In the first call, a male caller requests officers for a “lady acting up” without further explanation. In the second call, a female caller states there is a fight at the location (no weapons or injuries). No further information about the nature of the fight is provided. The dispatcher then requests assistance for a “disorderly person” at Bedford Park Blvd and Webster Ave over the radio.

PO Bryan’s BWC shows him, and PO Casey arrive at the location. They first speak to a person outside the bar who tells them at minute mark 01:00 that § 87(2)(b) is in the bar being loud and does not have any weapons. At minute mark 02:50, § 87(2)(b) walks towards the officers and tells them someone stole her phone. From minute mark 03:34 to 05:36, the officers call § 87(2)(b)’s phone multiple times and help her look for it. At minute mark 05:48, § 87(2)(b) walks towards PO Didiego, stands directly in front of him so their bodies are touching and says, “you found it funny that my phone was in my jacket.” PO Didiego then guides § 87(2)(b) away from him by placing his hands on her upper arms. § 87(2)(b) then tells the officers not to touch her. Throughout the interaction, while § 87(2)(b) is talking, she holds her arm up with her elbow bent at a 90 degree angle and points at the officers. At minute mark 06:22, PO Casey calls § 87(2)(b)’s phone again. When the sound of the phone ringing plays, he tells § 87(2)(b) to have a good day and begins to walk towards the exit of the bar. § 87(2)(b) then asks the officers to make sure the phone ringing is her phone.

The same interaction is captured on PO Glynn’s BWC at minute mark 03:37. As PO Casey walks away from § 87(2)(b) she follows behind him and tells him to make sure the phone ringing is hers. At minute mark 04:20, § 87(2)(b) walks towards each of the officers on scene and reads their names aloud. At minute mark 04:33, she approaches PO Zullo and asks him how to spell his name. As PO Zullo is spelling his name, § 87(2)(b) stands a few inches from his face as other officers tell her to back up. At minute mark 04:36, § 87(2)(b) raises her arm so that it is parallel to the floor while her elbow is bent. PO Glynn walks towards § 87(2)(b) and tells her to back up. At minute mark 04:39, § 87(2)(b) faces PO Glynn. She has her right arm bent at the elbow with her hand pointed upward towards his face, similar to the gesture previously displayed in the interaction, and says, “do not touch me.” PO Glynn and PO Casey immediately hold both her arms and place her on the pool table to be handcuffed while § 87(2)(b) continuously tells the officers not to touch her. At no point are officers seen throwing § 87(2)(b) around the bar.

PO Casey stated he observed § 87(2)(b) acting disorderly by being verbally aggressive towards people, yelling across the bar and getting in officer’s faces. She did not strike an officer or make any indication that she was about to strike an officer. He did not see § 87(2)(b) throw any objects or physically fight anyone while on scene. He asked § 87(2)(b) to leave the location because the staff wanted her out of the bar. PO Casey perceived her actions of not leaving and arguing in officer’s faces as threatening, disorderly, and non-compliant because she was not following the officer’s orders to leave the bar after being asked multiple times. Because § 87(2)(b) was not leaving the location, PO Casey believed § 87(2)(b)’s intoxication was one in the same as an emotionally disturbed person by “acting out mentally” in public and needed proper evaluation. PO Casey conferred with other officers on scene, then requested an ambulance for § 87(2)(b) to be removed to the hospital. PO Casey’s BWC audio captures him ask PO Glynn, “EDP do you think?” at minute mark 05:10 before § 87(2)(b) approaches PO Zullo. PO Glynn responds, “either discon or EDP.” PO Glynn then begins handcuffing § 87(2)(b) at minute mark 05:40. There were no supervisors on scene. PO Casey did not speak to a supervisor through the radio or over the phone before calling the ambulance at minute mark 07:11.

Both PO Glynn and PO Zullo stated they did not have further details about the incident in the bar besides that there was a physical fight on scene. Upon arrival, neither of them observed a physical fight. They stated § 87(2)(b) was highly intoxicated and behaving erratically by yelling and walking closely to the faces of the officers on scene. PO Zullo stated he believed § 87(2)(b) could potentially have gotten into a physical fight because she was upset. When § 87(2)(b) stood a few inches from his face, he determined this meant she was willing to potentially physically fight the officers and believed she was a danger to herself and others. PO Glynn stated from the moment he observed § 87(2)(b) he believed she possibly needed medical attention because she was being disorderly, acting erratic and slurring her speech. When he saw § 87(2)(b) stand inches away from PO Zullo's face with her arm bent and pulled back, he determined she definitely needed to go to the hospital, because she was intoxicated and a risk to herself and others. PO Glynn then placed her in handcuffs. Both PO Zullo and PO Glynn stated that arresting § 87(2)(b) for trespassing would not have helped her and believed if she was simply asked to leave the location she could have potentially walked into traffic and harmed herself. No other factors lead to this determination besides the fact that they believed she was intoxicated.

Patrol Guide Procedure 221-13 states an emotionally disturbed person is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. If such person is dangerous to himself or others, force may be used when it is reasonable to prevent serious physical injury or death. Members of the service will use only the reasonable force necessary to gain control or custody of a subject. When a uniformed member of the service reasonably believes that a person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others, the person can be removed to the hospital in ambulance (Board Review 08).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Civilian and Officer CCRB Histories

§ 87(2)(b)

[REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

PO Casey has been a member-of-service for 2 years and this is the first CCRB complaint to which he has been a subject.

PO Glynn has been a member-of-service for five years and has been a subject in one other CCRB case and one allegation which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined to mediate this complaint.

As of 6/14/2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 06).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator: Kayla Medwinter Investigator Kayla Medwinter 07/05/2022
Signature Print Title & Name Date

Squad Leader: _____

Signature	Manager Vanessa Rosen	July 5, 2022
_____	_____	_____
	Print Title & Name	Date

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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